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Case Number: 25SMCV05002 Hearing Date: June 23, 2026 Dept: M

CASE NAME: Clemans v. Agrawal

CASE NO.: 25SMCV05002

MOTION: Demurrer to the Complaint

HEARING DATE: 6/23/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v.

Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts

read the allegations liberally and in context. In a demurrer proceeding, the

defects must be apparent on the face of the pleading or via proper judicial

notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968,

994.) A demurrer tests the pleadings alone and not the evidence or other

extrinsic matters. Therefore, it lies only where the defects appear on the face

of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the

pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); Khoury v. Maly’s of Calif., Inc.

(1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect

has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th

1217, 1227.) It is an abuse of discretion for the court to deny leave to amend

where there is any reasonable possibility that plaintiff can state a good cause

of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is

on plaintiff to show in what manner plaintiff can amend the complaint,

and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Newton

Agrawal M.D. demurs to the fifth through eighth causes of action stated in

Plaintiff Victoria Clemans's Complaint.

Request

for Judicial Notice

Plaintiff's

request for judicial notice is DENIED as irrelevant extrinsic evidence. Plaintiff

proffers this evidence to show that Defendant should have disclosed prior

complaints of sexual misconduct against him. However, the Complaint does not

rely on such a theory. At best, the Court will examine this evidence for leave

to amend purposes.

Fraud

and Deceit

The

elements of fraud are: "(a) misrepresentation (false representation,

concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c)

intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e)

resulting damage.” (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.)

In California, fraud must be pled with specificity. (Small v. Fritz

Companies, Inc. (2003) 30 Cal.4th 167, 184.) “The particularity demands

that a plaintiff plead facts which show how, when, where, to whom, and by what

means the representations were tendered.” (Cansino v. Bank of America

(2014) 224 Cal.App.4th 1462, 1469.)

Defendant

argues that this cause of action recasts the medical malpractice as fraud. While

the cited authority recognizes that a plaintiff cannot avoid the medical

malpractice statute of limitations by casting the malpractice as fraud,

Defendant does not show that the statute of limitations for medical malpractice

has run. (Weinstock v. Eissler (1964) 224 Cal.App.2d 212, 227; Tell

v. Taylor (1961) 191 Cal.App.2d 266, 271.)

Defendant argues that Plaintiff was

in fact treated and cared for by Defendant. Defendant apparent disputes the

“falsity” element of fraud. Contrary to Defendant’s argument, the Complaint

adequately alleges falsity. The Complaint alleges that Agrawal misrepresented

to Plaintiff that he would do all things necessary to diagnose, care for, and

treat Plaintiff. (Compl., ¶ 74.) This representation was false when it was

made. (Id.) Instead, Defendant failed to help Plaintiff by failing to treat

Plaintiff's presenting issues and instead exacerbated

those problems. (Id., ¶ 77.) The Complaint alleges facts showing Defendant did

not do all things necessary to diagnose, care for, and treat Plaintiff. (Id.,

¶¶ 11-12, 26-38.) Whether Defendant actually acted in accordance with his

alleged representation would be a question of fact only resolvable outside of

the pleading stage.

However,

the Complaint does not allege the fraud cause of action with the necessary

specificity. The Complaint alleges that Agrawal misrepresented to Plaintiff

that he would do all things necessary to diagnose, care for, and treat

Plaintiff. (Compl., ¶ 74.) This representation was false when it was made.

(Id.) However, the Complaint does not establish how, when, where, and by what

means the representations were tendered. Plaintiff argues that less specificity

is required where defendant has fiduciary relationship with plaintiff and concealed

material facts. It is true that less specificity is required if it appears from

the nature of allegations that defendant must necessarily possess full

information, or if the facts lie more in the knowledge of opposing parties. (Alfaro

v. Community Housing Improvement System & Planning Assn., Inc. (2009)

171 Cal.App.4th 1356, 1384-1385.) This rule derives from the logic that specificity

of pleading is intended to apply only to affirmative representations, and not concealment.

(See *Id.* at 1384 [observing it is harder to apply the requirement of specificity to a case of simple nondisclosure, since “How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?”].) Here, however, Plaintiff does not plead fraud by omission. Instead, Plaintiff alleges Defendant made an affirmative representation to Plaintiff. Plaintiff necessarily has the information concerning the alleged affirmative misrepresentation. Conversely, Defendant possesses no greater information on the alleged affirmative misrepresentations given to Plaintiff. Thus, Plaintiff must allege with specificity the circumstances of that misrepresentation. Accordingly, the demurrer is SUSTAINED with leave to amend as to the fraud cause of action.

Battery

“The

essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (*So v. Shin*

(2013) 212 Cal.App.4th 652, 669)

Defendant

argues that Plaintiff is precluded from transforming a medical negligence

action, based upon lack of informed consent, into an action for an intentional

tort. (Stone v. Foster (1980) 106 Cal.App.3d 334; Cobbs v. Grant (1972)

8 Cal. 3d 229. However, the Complaint alleges a sexual battery without

reference to any treatment or a lack of informed consent. (Compl., ¶ 85.)

Defendant

also argues that a battery is not alleged where the instances of physical

contact only involved romantic and sexual relations one evening. (Compl., ¶¶

25-36.) Defendant argues that Plaintiff permitted or consented to the

romantic/sexual acts, and that such acts could not be reasonably offensive. (Id.,

¶¶ 82-86.) However, on demurrer, the Complaint must be read reasonably in favor

of the pleading party. The Complaint alleges, as a matter of fact, that Plaintiff

did not consent to this sexualized touching and sexual contact, and in fact was

not able to consent to it, because of the nature of the transference

phenomenon. (Id., ¶ 87.) A plaintiff may establish that they did not consent to

sexual intercourse with a psychotherapist in light of the transference

phenomenon. (See McNall v. Summers (1994) 25 Cal.App.4th 1300, 1312-14 [nonsuit

of sexual abuse malpractice action against psychotherapist was improper where expert

testimony explained how the transference phenomenon negated the plaintiff's

apparent consent, and where plaintiff did not have to show the therapist engaged

in sexual relations with her under the guise of rendering professional services].)

The professional statutory duties of psychotherapists support this view. For example, Business and Professions Code section 726 states that sexual abuse, misconduct, or relations with a patient constitute unprofessional conduct and grounds for discipline regardless of consent. Civil Code section 43.93 prohibits sexual contact from occurring during the period the patient was receiving psychotherapy from the psychotherapist and within two years following termination of therapy, regardless of consent. Thus, at a minimum, Plaintiff's consent is a dispute of fact that cannot be resolved at this stage. Likewise, the Complaint alleges, as a matter of fact, that Defendant's conduct constituted harmful or offensive touching. (Compl., ¶ 86.) This also remains a question of fact that cannot be resolved at this stage.

Accordingly,

the demurrer is **OVERRULED**.

Sexual

Battery

Civil

Code section 1708.5 provides the following:

(a)

A person commits a sexual battery who does any of the following:

(1) Acts with the intent to cause a

harmful or offensive contact with an intimate part of another, and a sexually

offensive contact with that person directly or indirectly results.

(2) Acts with the intent to cause a

harmful or offensive contact with another by use of his or her intimate part,

and a sexually offensive contact with that person directly or indirectly

results.

(3) Acts to cause an imminent

apprehension of the conduct described in paragraph (1) or (2), and a sexually

offensive contact with that person directly or indirectly results.

(Civ.

Code, § 1708.5(a).)

“A

cause of action for sexual battery under Civil Code section 1708.5 requires the

batterer intend to cause a ‘harmful or offensive’ contact and the batteree

suffer a ‘sexually offensive contact.’” (Angie M. v. Superior Court

(1995) 37 Cal.App.4th 1217, 1225.)

Defendant

re-raises his objections to the battery action. Again, the Complaint alleges

that Plaintiff did not (and could not) consent as a matter of fact. (Compl., ¶¶

66-67.) The Complaint alleges that Defendant's touching was harmful and sexually offensive. (Id., ¶¶ 35-38, 96.)

Accordingly,

the demurrer is OVERRULED.

Sexual

Harassment

The

elements of an Unruh claim under Civil Code section 51.9 are:

“(1)

There is a business, service, or professional relationship between the plaintiff and defendant or the defendant holds himself or herself out as being able to help the plaintiff establish a business, service, or professional relationship with the defendant or a third party. Such a relationship may exist between a plaintiff and a person, including, but not limited to, any of the following persons:

(A)

Physician, psychotherapist, or dentist. For purposes of this section, “psychotherapist” has the same meaning as set forth in paragraph (1) of subdivision (c) of Section 728 of the Business and Professions Code.

[...]

(2) The

defendant has made sexual advances, solicitations, sexual requests, demands for sexual compliance by the plaintiff, or engaged in other verbal, visual, or physical conduct of a sexual nature or of a hostile nature based on gender, that were unwelcome and pervasive or severe.

(3) The

plaintiff has suffered or will suffer economic loss or disadvantage or personal injury, including, but not limited to, emotional distress or the violation of a statutory or constitutional right, as a result of the conduct described in paragraph (2)."

Defendant

re-raises his same objections to the battery causes discussed above. Again, the

Complaint alleges that Plaintiff did not (and could not) consent to the sexual

advances as a matter of fact. (Compl., ¶¶ 35-38, 86-87, 106.) Those same facts show

that Defendant's conduct was unwelcome and severe. (Id.)

Accordingly,

the demurrer is OVERRULED.

Plaintiff has 20 days

to file an amended complaint.